

The Steel And Steel Products (Quality Control) Order, 2008

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Union of India - Act

The Steel And Steel Products (Quality Control) Order, 2008

UNION OF INDIA

India

The Steel And Steel Products (Quality Control) Order, 2008

Rule THE-STEEL-AND-STEEL-PRODUCTS-QUALITY-CONTROL-ORDER-2008 of 2008

Published on 9 September 2008

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The Steel And Steel Products (Quality Control) Order, 2008

Published Vide S.O. 2172(E), dated 9-9-2008, published in the Gazette of India, Ext., Pt.II, Section 3(ii), dated 9-9-2008 334.

In exercise of the powers conferred by section 14 of the Bureau of Indian Standards Act, 1986 (63 of 1986) and in supersession of the ORDER of the Government of India in the Ministry of Consumer Affairs, Food and Public Distribution, Department of Consumer Affairs, published in the Gazette of India, Extraordinary, Part II, section 3, sub-section (ii), vide S.O. 1908(E), dated the 12th November, 2007, the Central Government after consulting the Bureau of Indian Standards hereby makes the following Order, namely: -

1.

Short title and commencement .-(1) This Order may be called the Steel and Steel Products (Quality Control) Order, 2008.

(2)

This Order shall come into force with effect from the 12th September, 2008.

2.

Definitions

.-In this Order, unless the context otherwise requires,-

(a)

"Act "means the Bureau of Indian Standards Act, 1986 (63 of 1986);

(b)

"appropriate authority "means, -

(i)

an officer not below the rank of an Under Secretary in the Ministry of Steel;

(ii)

all General Managers, District Industries Centres of the State Governments; and

(iii)

Directors or Commissioners of Industries of the State Governments or Union territories;

(c)

"Bureau "means the Bureau of Indian Standards;

(d)

"dealer ", in relation to steel and steel products, means a person who, or a firm or a Hindu undivided family or a company or a co-operative society, which carries on, directly or otherwise, the business of buying, selling, supplying or distributing steel and steel products whether in cash or for deferred payment or for commission, remuneration or other valuable consideration;

(e)

"manufacturer ", in relation to steel and steel products, means a person who or a firm or a Hindu undivided family or a company or a co-operative society, which produces, makes, assembles or manufactures steel and steel products and includes a person who, or a firm or Hindu undivided family or a company or a co-operative society which claims such steel and steel products to be produced, made, assembled or manufactured by such person or firm or Hindu undivided family or a company or a co-operative society, as the case may be;

(f)

"Schedule "means the Schedule annexed to this Order;

(g)

"specified standard "in relation to steel and steel products means the standard as specified in the corresponding entry in column (1) of the Schedule;

(h)

"State Government "in relation to a Union territory means the Administrator thereof; Encyclopaedia

(i)

"steel and steel products "means the items specified in column (2) of the Schedule; and (j) the words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Prohibition regarding manufacture, storage, sale and distribution, etc

.- (1) No person shall by himself or through any person on his behalf manufacture or store for sale, sell or distribute any steel and steel products given in the Schedule, which do not conform to the specified standards and do not bear standard mark of the Bureau on obtaining certification marks license:

Provided that nothing in this Order shall apply in relation to export of steel and steel products required for export, which conform to any specification required by the foreign buyer and such specification shall not in any case be less than the specified standard.

(2)

The sub-standard or defective steel and steel products, which do not conform to the specified standard, shall be disposed off as scrap.

4.

Obligation for certification

.(1) All manufacturers of steel and steel products shall make an application to the Bureau for obtaining license for use of the standard mark, within forty-five days of the issue of this Order, if not already obtained.

(2)

The grant of license by the Bureau for use of the standard mark shall be as per the provisions of the Act and rules and regulations made thereunder.

(3)

When any person by himself or through any person on his behalf proposes to manufacture steel and steel products he shall commence regular production only after obtaining a valid license from the Bureau for the use of standard mark.

(4)

Consequent to the expiry of any license or cancellation thereof by the Bureau for one or more of the steel and steel products, the Bureau shall inform the same to the Appropriate Authority .

5.

Power to call for information, etc .-The appropriate authority may, with a view to securing compliance with this Order-

(a)

require any person engaged in the manufacture, storage for sale, sale or distribution of any steel and steel products to give such information as he deems necessary relating to the manufacture, storage for sale, sale or distribution of any steel and steel products for the implementation of this Order or require any such person to furnish to him samples of any such steel and steel products; and

(b)

inspect or cause to be inspected any books or other documents and other steel and steel products kept by or belonging to or in the possession or under the control of any person engaged in the manufacture, storage for sale, sale or distribution of any steel and steel products.

6.

Testing of samples

.-Samples of any steel and steel products bearing the standard mark and drawn by the Appropriate Authority, for ascertaining whether they are of the specified standard, shall be tested in the laboratory approved by the Bureau and in the manner as may be specified by the Bureau.

7.

Power to issue direction to manufacturers and dealers . -The appropriate authority may issue such directions to the manufacturers and dealers, consistent with the provisions of the Act or this Order, as may be necessary for carrying out the purposes of this Order.

8.

Compliance of directions

.-Every person engaged in the manufacture, storage for sale, sale or distribution of any steel and steel products given in the Schedule to whom any direction is issued under this Order, shall comply with such direction.

9.

Obligation to furnish information

.-No manufacturer or dealer shall with intent to evade the provisions of this Order, refuse to give any information lawfully demanded from him under clause (5) or conceal, destroy, mutilate or deface any books or documents or any steel and steel products kept by, or in the possession or control of, such person.

Schedule

[See clause 2(f)]

LIST OF STEEL

PRODUCTS UNDER MANDATORY BUREAU OF INDIAN STANDARDS CERTIFICATION

Indian standard number

Title

(1)

(2)

1785 (Part 1)

Specification for plain-hard-drawn steel wire for pre-stressed concrete; Part 1 Cold-drawn stress relieved wire.

1785 (Part 2)

Specification for plain-hard-drawn steel wire for pre-stressed concrete; Part 2 as drawn wire.

6003

Specification for indented wire for pre-stressed concrete.

6006

Specification for uncoated stress relieved strand for pre-stressed concrete.

13620

Specification for uncoated stress relieved strand for pre-stressed concrete.

13620

Specification for fusion bonded epoxy coated reinforcing bars

14268

Specification for uncoated stress relieved low relaxation seven ply strand for pre-stressed concrete.

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